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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED : 09.09.2026

CORAM:

THE HONOURABLE MR.JUSTICE RAJNISH PATHIYIL

W.P.(MD).No.17351 of 2018
and
W.M.P(MD).No.15256 of 2018

A. Johnson ... Petitioner

Vs

1. The Managing Director,
   Tamil Nadu State Transport Corporation (tirunelveli) Ltd.,
   Vannarapettai,
   Tirunelveli District.

2. The General Manager,
   Tamil Nadu State Transport Corporation (tirunelveli) Ltd.,
   Nagercoil Region,
   Kanyakumari District.

3. The Branch Manager,
   Tamil Nadu State Transport Corporation (tirunelveli) Ltd.,
   Nagercoil Region,
   Thiruvattar Branch,
   Kanyakumari District. ... Respondents

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PRAYER: Writ Petition filed under Article 226 of the Constitution of India, praying this Court to issue a Writ of Certiorarified Mandamus to call for the records on the file of 2nd respondent pertaining to its order bearing letter No. 66/A2/TNSTC(Thili)/Nagar/2011 dated 03.04.2017 and to quash the same and consequently direct the respondents to promote the petitioner as Ticket Examiner on par with his immediate juniors with effect from the date of promotion granted to them.

For Petitioner : Mr.T.Jeen Joseph

For R1 to R3 : Mr.P.F.Ferlin Castro

ORDER

The relief sought for in the writ petition is to quash the impugned order dated 03.04.2017 bearing letter No.66/A2/TNSTC(Thili)/Nagar/2011 and consequently, direct the respondents to promote the petitioner as Ticket Examiner.

2. It is the case of the petitioner that he was employed through the District Employment Office and was appointed in the year 1985 at Kuzhithurai Branch in Kanyakumari District. He was regularized in service with effect from 01.09.1986.

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3. It is the further case of the petitioner that though he has put in 31 years of service, he has not been promoted. However, the persons who joined along with the petitioner and some of his juniors were placed in the original seniority list and promoted to the post of Ticket Checking Inspector.

4. It is the further case of the petitioner that he has an unblemished record of service and that no charges were framed against him and further, no punishment was imposed and that he has been victimized without any reason and consequently, he claims that he should promoted with effect on the date his immediate junior namely R.Henry David (Employment No.1044) was promoted. He would contend that earlier he had sent a representation dated 21.05.2016 as it did not evoke any response, he filed a writ petition in W.P(MD).No.11772 of 2016 and this Court vide order dated 01.12.2016 has directed as follows:-

> *"This writ petition has been filed, seeking a direction to the respondents to promote the petitioner as Ticker Examiner on par with his immediate juniors with effect from the date of promotion granted to them by considering the representation of the petitioner, dated 21.05.2016.*
>
> *2. Heard the learned counsel for the petitioner and the learned counsel for the respondents. By consent, the writ petition itself is taken up for final disposal at the stage of admission.*

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3. According to the petitioner, the petitioner was appointed as a Conductor on 1985 and his services were regularised with effect from 01.09.1996. Even though he has put in 31 years of service, the respondent Corporation has not given any promotion to him. However, the other conductors who are juniors to the dated petitioner granted promotion as Ticket Examiners during June 2015. Therefore, the petitioner has given a representation dated 21.05.2016 to the respondents 1 and 2. Since no order has been passed, the petitioner has filed this writ petition.

4. The learned counsel appearing for the respondents would submit that it is agreeable for the second respondent to consider the representation and to pass orders.

5. Under such circumstances, the second respondent is directed to consider the representation of the petitioner dated 21.05.2016 and to pass appropriate orders, within a period of eight weeks from the date of receipt of a copy of this order.

6. The writ petition is disposed of with the above direction. No costs. Consequently, W.M.P(MD).No.9031 of 2016 is closed.

5. Consequently, the impugned order dated 03.04.2017 came to be passed and that is now put to challenge. The grounds urged are that the services of the petitioner requires review at the end of the completion of 6 years, 8 years and 10 years and that his review was delayed deliberately and hence, his promotion to the post of the Ticket Examiner has not been granted.

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6. Per contra, learned counsel appearing for the respondents 1 to 3 adverted to the counter dated 29.08.2026 and submitted that though the petitioner as well as the said R.Henry David (Employment No.1044) were appointed on the same date, i.e., 08.08.1985 and became permanent with effect from 01.09.1986, the petitioner was suspended from 19.07.1987 to 17.08.1987 and the said suspension itself was treated as specific punishment. Moreover, the petitioner remained on leave on loss of pay from 18.08.1987 to 20.10.1987 (Over a period of 64 days) and accordingly, the review which was supposed to have taken place on 01.02.1992 (1st review) could not be granted on that day and was granted subsequently, only on 01.02.1993 because of the punishment inflicted as well as the leave on account of loss of pay. Similarly, the petitioner was also on leave without allowance during the 2nd and 3rd reviews and accordingly, the 3rd review came to be granted only on 01.08.2008 and after the seniority list which was published on 17.05.2016 consequent upon the 3rd review, the petitioner was placed at No.61.

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7. Paragraph 4 of the counter affidavit adverts to a table, which is extracted hereunder:-

Name & EDP No	Date of daily paid	Date of Monthly paid	1st Review	2nd Review	3rd Review	Date of Promotion
A.Johnson, EDP No.1040	08.08.1985	01.09.1986	01.02.1993	01.05.2001	01.08.2008	13.07.2017
R.Henry David, EDP No.1044	08.08.1985	01.09.1986	01.11.1991	01.11.1999	01.11.2009	30.06.2015
D.Bright Paul, EDP No.5621	03.01.1985	03.01.1986	01.05.1991	01.01.2000	01.02.2008	15.05.2017

The above table clearly shows that the immediate junior having EDP.No.1044 was granted the 1st review, 2nd review and 3rd review.

8. It is further averred by the respondents that consequent upon the settlement arrived between the management and the workmen under Section 12(3) in the Industrial Disputes Act, 1974, the pattern hitherto being followed that is 6 + 8 + 10 (1st review, 2nd review & 3rd review) has now been revised to (6 + 7 + 8 + 8 + 3) and that the petitioner himself has completed 21 years of qualifying service under the revised pattern as per the Settlement Dated 22.01.2011 and the Juniors who the petitioners point out have been promoted earlier to the petitioner is only because of the fact that the 1st review, the 2nd review and the promotions were all affected earlier. Thus, the petitioner

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cannot claim parity on account of the promotions effected to the juniors as he was issued with the punishment order and remained on leave without pay and thus, as and when vacancies arise for consideration and since the petitioners placed at Sl.No.61, he would be considered for promotion.

9. The counter affidavit filed by the respondents 1 to 3, referred to supra, demonstrates that the petitioner's 1st review was conducted only on 01.02.1993, in view of the fact that he was placed under suspension from 09.07.1987 to 17.08.1987, for a period of 30 days, which was treated as a punishment.

10. The petitioner also remained on leave without pay from 18.08.1987 to 20.10.1987, for a period of 64 days. Therefore, the 1st review, which fell due on 01.11.1991, could not be granted and was consequently granted only on 01.02.1993. Thereafter, the 2nd review was conducted on 01.05.2001, and the 3rd review was conducted on 01.08.2008. Thus, in effect, the delay in conducting the subsequent reviews was attributable to the postponement of the 1st review on account of the punishment imposed on the petitioner for the misconduct committed by him. The period of suspension was specifically

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treated as punishment, and the petitioner had also availed leave without any accumulated leave to his credit, which was consequently treated as leave without pay. Thus, the postponement of the 1st review was attributable to the petitioner's own conduct.

11. In the above circumstances, I find that the petitioner has not made out a case warranting interference. Hence, the order dated 03.04.2017 bearing letter No.66/A2/TNSTC(Thili)/Nagar/2011, issued by the 2nd respondent does not call for any interference.

12. Accordingly, the writ petition stands dismissed. No costs. Consequently, connected miscellaneous petition is closed.

09.09.2026

NCC :yes/No
Index :yes/No
Internet:yes/No
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RAJNISH PATHIYIL, J.

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